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NO. 38381-4-III

COURT OF APPEALS, DIVISION III
OF THE STATE OF WASHINGTON

ADELINA GABRIELA SUAREZ,

Appellant/Plaintiff

v.

THE STATE OF WASHINGTON, TAMMY WINEGARD and her community property, JULIANNE MOORE and her marital community property, and TAMMY MASTERS and her community property,

Respondents/Defendants

APPELLANT'S OPENING BRIEF

Favian Valencia, WSBA# 43802
Counsel for Appellant
Sunlight Law, PLLC
306 Holton Ave
Yakima, WA 98902
(509) 388-0231

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I. INTRODUCTION

Adelina Gabriela Suarez ("Appellant") is seeking review of the Yakima County Superior Court's June 16, 2021 Order Granting Respondents' Motion for Summary Judgment on the claims of violations of Washington Law Against Discrimination (WLAD) and public policy based on religious beliefs and denying Appellant's cross Motion for Summary Judgment for failure to accommodate and wrongful termination.

II. ASSIGNMENTS OF ERROR

Assignment of Error No. 1: The trial court erred in granting summary judgment to Respondents on Appellant's discrimination, retaliation and failure to accommodate claims based on her religion pursuant to WLAD.

Assignment of Error No. 2: The trial court erred in granting summary judgment to Respondents on Appellant's wrongful termination in violation of religious discrimination public policy claim.

Assignment of Error No. 3: The trial court erred in denying Appellant her motion for summary judgment on her claim of failure to accommodate her religious beliefs and practices pursuant to WLAD.

III. ISSUES PRESENTED FOR REVIEW

1. Whether an employer violates WLAD when it fails to engage in the interactive process to provide a reasonable accommodation for an employee's religious practices.

2. Whether an employer violates WLAD when it refuses to provide available accommodations in the form of different work shift and/or time off to an employee that are necessary for her religious beliefs and practices.

3. Whether an employer discriminates and/or retaliates against an employee in violation of WLAD when it terminates an employee for taking time off to practice her religion.

4. Whether an employer wrongfully terminates an employee based on the public policy of nondiscrimination for religious practices and/or accommodations when it terminates an employee for taking time off to practice her religion.

IV. STATEMENT OF THE CASE

1. Appellant Adelina Suarez is a Christian who observes all the Feasts of God and the weekly Sabbath, which are the same Holy Days kept in the Jewish faith. CP 244, Decl. of Suarez at ¶ 3. There are seven Feasts throughout the year, but they are not like traditional American holidays where observation is optional. CP 244, Decl. Suarez at ¶ 4. According to Appellant's religious belief, she is commanded not to work on these Holy Days, but instead must set apart these days to concentrate on worshiping God, fellowshipping with other believers, and reading God's Word. CP 244, Decl. Suarez at ¶ 5. Because there are quite a few

Feasts throughout the year and because these Feasts are at the center of Appellant's life, she had to find a job that could work around her religious needs. CP 245 Decl. Suarez at ¶ 12-13. During Appellant's interview to work for Respondent Washington State Yakima Valley School ("Respondent State"), she informed Respondent State through Respondent Tammy Masters ("Respondent Masters") that it was very important to her to celebrate the Sabbath for her religion by having Fridays and Saturdays off. CP 245 Decl. Suarez at ¶ 13. Respondents indicated that they did not have position that could accommodate those days off, but that Appellant could request a schedule change after she worked for them for a period of time. *Id.* Appellant accepted a position with Respondents because she needed the work and because she was promised that Respondents would consider changing her schedule to accommodate the observance of the Sabbath. CP 246 Decl. Suarez at ¶ 15. Appellant began working for Respondents on October 8, 2018. CP 4 and 11 at ¶ 7.

2. After Appellant began working for Respondents, she requested a schedule change several times to have Fridays and Saturdays off so that she could observe the Sabbath. *Id.* at ¶ 16; CP 357 at ¶ 7. Respondents denied the schedule change, but did initially allow time off for specific religious holidays; Respondents were aware of Appellants need for time off due to her religious beliefs and practice: Appellant

requested and Respondents approved time off for Passover and the Feast of Unleavened Bread and Pentecost. CP 247 Decl. Suarez at ¶ 19. This time off included a week off in April of 2019. CP 225, Respondent State CR 30(b)(6) designee ("Respondent State Dep.") at 23:7-14. Although Appellant had Saturday during the day off, it was not adequate to accommodate her religious practice because she did not simply need an hour or two to attend a service, rather according to Appellant's religious beliefs, the entire Sabbath day is supposed to be spent praying, worshipping, fellowshipping with other believers and learning the Bible not spent sleeping or preparing for work that night. *Id.* at ¶ 17.

3. In order for Respondents' employees to be transferred to a position that has different days off, employees have to be out of their probationary period and be a permanent employee and then submit a bid to be transferred. CP 349 at ¶ 7. However, if positions do not receive a bid, employees that are still in their probationary period can submit an application for that position. *Id.* This system is based on seniority. *Id.*

On September 22, 2019, Respondents granted a position with Fridays and Saturdays off to a comparator employee, Ariel Leyva, who was still in her probationary status and had two (2) months less seniority than Appellant. CP 238-39 Respondent State Dep. At 93:18-94:7; CP 246, Decl. Suarez at ¶ 16. Respondents knew that this position with Fridays and

Saturdays became available. CP 240 Respondent State Dep. at 95:9-25. Respondents did not tell Appellant that this position became available, that she would have to apply for a new position, where to look for such a position, or how to apply. CP 246, Decl. Suarez at ¶ 16. Respondents allege that they believed that Appellant was informed of this position through an email from a website, careers.wa.gov, but this email was never produced. CP 242 Respondent State Dep. at 97:12-23.

4. In pursuing a schedule change to accommodate her religious practice of keeping the Sabbath on Saturday, Appellant spoke to Respondent Julianne Moore. CP 247, Decl. Suarez at ¶ 17. Respondent Moore told Appellant that she could not change her schedule to accommodate Appellant's religious practice but could accommodate a college schedule. CP 246, Decl. Suarez at ¶ 17.

5. Respondent Masters who was Appellant's supervisor had authority to make schedule changes for periods of less than 30 days for employees that needed medical leave or to go to a doctor appointment, but not for religious accommodations. CP 223-25 Respondent State Dep. at 21:4-23:9.

6. It is common for Respondents' employees to not show up for their shift. CP 234 Respondent State Dep. at 89:23-24. When someone does not show up to their shift, Respondent State first contacts employees

who are on the on-call pool, then it calls employees on the voluntary overtime list then if it still has not found coverage, it requires someone who is on the mandatory overtime list to work. CP 234 Respondent State Dep. at 89:24-90:4.

On September 9, 2019, 19 days before Appellant's religious festival, Appellant used a program called "Leave Tracker" to request September 28 and 29 and October 5 and 5 off for a religious purpose. CP 378, Decl. Suarez.

7. On September 11, 2019, Respondents denied Appellant the requested time off. CP 229 Respondent State Dep. at 36:5-9. On September 13, Respondent Masters told Appellant to speak with the appointing authority, Respondent Tammy Winegard, about overriding the denial. CP 229 Respondent State Dep. at 36:10-15. Appellant spoke to Respondent Winegard on September 27 to request September 28 and 29 off for a religious festival. CP 247, Decl. Suarez at ¶ 22. Respondent Winegard told Appellant to email her, so Appellant sent an email on September 27. CP 247, Decl. Suarez at ¶ 22. Appellant sent the email requesting time off for a religious purpose but Respondent Winegard again denied Appellant's request. CP 247, Decl. Suarez at ¶ 22.

8. Appellant worked her scheduled shift on Saturday, September 28, then attended her religious festival on Sunday in Seattle.

CP 247-248, Decl. Suarez at ¶ 23. That afternoon Appellant again called Respondents to let them know she was not coming into work because or her religious festival. *Id*.

9. On September 29, 2019, Respondents needed to have twenty-one (21) staff members to safely to provide support to the residents during the night safely. CP 230 Respondent State Dep. at 73:21-23. Twenty-four (24) employees were scheduled, and three called in and did not show up, leaving twenty-one (21) staff members. CP 231 Respondent State Dep. at 74:12-17. There is no evidence that the three employees that did not show up were reprimanded or disciplined. Respondents also had six staff working overtime and one staff member working mandatory overtime. CP 231 Respondent State Dep. at 74:14-17. When asked to describe the communications Respondent took to attempt to have somebody cover Appellant's shift on September 29, 2019, it indicated that the only communication was to deny the September 11, 2019 leave request—Respondent did not describe any efforts of calling on other employees to cover as required by its own policy. CP 235-38 Respondent State Dep. at 90:11-93:4. Respondent did have Appellant's September 29, 2019 shift covered by Ms. Leyva who was required to work mandatory overtime that day. CP 234 Respondent State Dep. at 89:7-15.

10. The next Thursday after September 29, Respondents fired Appellant. CP 248, Decl. Suarez at ¶ 24. Respondent Masters told Appellant she was fired for not coming to work on September 29. CP 248, Decl. Suarez at ¶ 24. During her employment Appellant had not received any discipline. CP 220, CP 231, Respondent State Dep. at 14:4-8. Although Respondent Tammy Winegard had the discretion to discipline rather than terminate, she chose to terminate Appellant. CP 231, Respondent State Dep. 72:4-7, 17-20.

11. One of Respondents' reasons for terminating Appellant was for requesting time off and taking time off on September 29, 2019. CP 380, Respondent State Dep. at 71:6-14. (Q: ...was her [Suarez's] request for time off, or that she submitted for the 9-28 and 29 of 2019, was that a reason for her termination? A: ... that's part of the reason, yeah.").

V. ARGUMENT

A. Standard of Review on Appeal From Summary Judgment

Orders on summary judgment are reviewed *de novo*. *Lyons v. U.S. Bank Nat'l Ass'n,* 181 Wash.2d 775, 783, 336 P.3d 1142 (2014); *Mikolajczak v. Mann*, 1 Wash. App. 2d 493, 496, 406 P.3d 670 (2017). Under this standard, the court engages in the same inquiry as the trial court, viewing the facts and all reasonable inferences therefrom in the light most favorable to the nonmoving party. *Lyons,* 181 Wash.2d at 783, 336

P.3d 1142; *Mikolajczak,* 1 Wash. App. 2d at 496-97, 406 P.3d 670. Weighing of conflicting evidence is inappropriate at the summary judgment stage (*Strauss v. Premera Blue Cross*, 194 Wn.2d 296, 449 P.3d 640, (2019)) because the jury is the sole judge of the credibility of witnesses (*Scribner v. Nat'l Ref. Co.*, 169 Wash. 44, 47, 13 P.2d 61 (1932)). In reviewing *de novo* the lower court's granting of summary judgment, the evidence is to be construed "in the light most favorable to the nonmoving party and draw all reasonable inferences in that party's favor." *Parker Estates Homeowners Ass'n v. Pattison,* 198 Wn. App. 16, 24, 391 P.3d 481, 486 (2016). The nonmoving party bears the burden, not to prove facts, but to produce evidence that discloses the existence of a genuine issue of material fact. *See Meyer v. University of Washington*, 105 Wn.2d 847, 852, 719 P.2d 98 (1986).

With regards to Appellant's claims for violation of WLAD and wrongful termination in violation of public policy based on the protected class of her religious beliefs, Appellants only burden at this stage of summary judgment was to provide sufficient evidence that there was a disputed issue of material fact with regards to each element of her claims. *LaPlante v. State*, 85 Wn.2d 154, 158, 531 P.2d 299, (1975) (citations omitted). The employee may make a prima facie case through direct or circumstantial evidence sufficient to raise an inference of discrimination.

Hill v. BCTI Income Fund-I, 144 Wn.2d 172, 181, 185-86, 23 P.3d 440 (2001). This is because "[d]irect, 'smoking gun' evidence of discriminatory animus is rare since '[t]here will seldom be 'eyewitness' testimony as to the employer's mental processes' … and 'employers infrequently announce their bad motives orally or in writing.'" *Id.* at 179.

B. **The State of Washington Discriminated against Suarez in Violation of the Washington Law Against Discrimination as a matter of law by failing to accommodate Suarez's Religious Practice.**

Employers are prohibited from discriminating on the basis of religion. RCW 49.60.180(1); *Kumar v. Gate Gourmet, Inc.*, 180 Wn.2d 481, 489, 325 P.3d 193, (2014). An employee has a cause of action under the Washington Law Against Discrimination (WLAD) when an employer fails to accommodate her religious practices. *Kumar v. Gate Gourmet, Inc.*, 180 Wn.2d 481, 325 P.3d 193 (2014).

A plaintiff establishes a prima facie claim of failure to accommodate religious practices by showing that (1) he or she had a bona fide religious belief, the practice of which conflicted with employment duties; (2) he or she informed the employer of the beliefs and the conflict; and (3) the employer responded by subjecting the employee to threatened or actual discriminatory treatment. *Kumar*, 180 Wn.2d at 501.

An employer can defend against a religious accommodation claim by showing an undue hardship, which may be a financial burden or something non-monetary such as the interests of clients or other employees. *Kumar*, 180 Wn.2d at 502.

Here, Appellant has established that she is a Christian who observes a weekly Sabbath as well as seven biblical Festivals throughout the year, which are considered Sabbath days. Appellant's religious practice of observing the weekly Sabbath on Saturday conflicted with her work schedule. Respondents admit that Appellant requested a schedule that would allow her to have Fridays and Saturdays off generally. Respondents also admit that they didn't grant Appellant time off specifically for religious purposes. Respondents had direct knowledge that Appellant needed the accommodation of having Fridays and Saturdays off. When these facts are seen in the light most favorable to Appellant, the inference that has to be drawn from this is that Respondents failed to take affirmative steps to determine what accommodations could have been provided. Respondents admit that right before Appellant was terminated in September 2019, there was an opening for a position that had Fridays and Saturdays off that could have accommodated Appellant's religious beliefs and practices. instead of taking affirmative steps to allow Appellant to fill this position, this

position was given to Appellant's a coworker who had less seniority than her. This is a failure to accommodate and a violation of the WLAD.

When Respondents denied her request for time off on September 29, 2019, it forced Appellant to choose between obeying God and obeying Respondents. Respondents do not dispute that Appellant informed them that she needed September 28 and 29 off for a religious purpose. Appellant spoke to Respondents Masters, Winegard, and Moore about getting these days off.

When asked in the capacity of a CR 30(b)(6) designee to describe the communications that it undertook to attempt to accommodate Appellant to take September 29, 2019 off for her religious Festival, Respondent Masters indicated that it only denied the initial September 11, 2019 leave request. Respondent could have called its other employees that were required to cover shifts and to find coverage. In fact the Respondent did have somebody to cover who had to work mandatory overtime anyways—Ms. Leyva covered Appellant's shift and there was no undue hardship to Respondents. Respondents needed twenty-one (21) staff members to safely assist the residents and there were at least twenty-one (21) staff members working the night of September 29, 2019. But even if there were less than the required amount of staff there is no evidence this caused any hardship. Further,

simply notifying Appellant of the correct process to get her schedule changed to accommodate her religious practice is not a hardship.

The most concerning issue regarding Respondents' failure to accommodate Appellant's religious beliefs is that Respondents admit that they readily accommodated other employees for reasons of medical leave and doctor appointments. There were three other Appellant's coworkers who were absent and did not show up for their shift on September 29, 2019, but there is no evidence to prove that Respondents' reprimanded these employees. Appellant is only asking that her protected class of religious belief and religious practice be given the same treatment as a protected class disability or medical condition as required by the WLAD. As a matter of law it is unlawful for an employer to grant greater protections of one class of employees over others. When viewing the evidence in the light most favorable to Appellant, a reasonable jury could only reach one conclusion – that Respondents failed to accommodate Appellant's religious practice and their failure to do so is not excused as s a matter of law. At the very least, the evidence in the record creates a genuine issue of material fact sufficient to deny Respondents' motion for summary judgment. Therefore, this Court should reverse the trial court's Order Denying Plaintiff's Motion for Summary Judgment regarding liability for

Appellant's failure to accommodate claim, and/or remand this case for trial on the merits.

C. <u>Respondents Discriminated and Retaliated Against Appellant in Violation of WLAD by terminating Appellant for practicing her religious beliefs</u>

To establish a claim of discrimination Based on disparate treatment an employee has to prove that (1) an employer took an adverse action against the employee and (2) that the employee's religion was a substantial factor in the decision to take the adverse action. WPI 330.01; *Scrivener v. Clark Coll.,* 181 Wn.2d 439, 444, 334 P.3d 541, 545 (2014). It is undisputed that Respondents took an adverse action against Appellant by terminating her. Furthermore, Respondents admit that one of the reasons for the termination was for her absence on September 29, 2019, which Respondents knew was due to her religion. This becomes even more evident by the fact that other employees were also absent on that same day, but were not disciplined. Furthermore, the fact that Respondents had an available position that would have accommodated Appellant's religious practice, but failed to offer it to her creates a disputed issue of fact that has to be resolved in the light most favorable to Appellant and is sufficient to preclude summary judgment.

Similarly, an employee establishes a claim of retaliation in violation of WLAD by establishing that (1) she was opposing what she reasonably

believed to be discrimination on the basis of her religion and (2) that a substantial factor in the decision to terminate her was the employees opposition to the discriminatory practice. RCW 49.60.210(1); *Allison v. Hous. Auth.,* 118 Wn.2d 79, 821 P.2d 34 (1991). On September 11, 2019, When Respondents denied Appellant's request to take time off for her religious practices and Appellant complained and continue to request that Respondents reconsider their decision denying her time off, Appellant was engaging in opposing what she reasonably believed to be a discriminatory practice. The fact that Respondents readily Granted time off for a variety of reasons except for religious purpose is discriminatory on its face. Looking at this evidence in the light most favorable to Appellant, she has established her claim of retaliation sufficient to deny summary judgment.

D. <u>Respondents violated public policy when it terminated Suarez for practicing her religion.</u>

Wrongful discharge in violation of public policy is a narrow exception to the at-will doctrine. *Becker v. Community Health Systems, Inc.*, 184 Wn.2d 252, 258, 359 P.3d 746, (2015). A plaintiff has a cause of action against her employer for wrongful discharge when she pleads and proves that her termination was motivated by reasons that contravene an important legislatively recognized mandate of public policy such as exercising a legal right or privilege. *Becker*, 184 Wn.2d at

258-59. Once established, the burden shifts to the employer to plead and prove that the employee's termination was motivated by other, legitimate, reasons. *Becker*, 184 Wn.2d at 258 (citing *Thompson v. St. Regis Paper Co.*, 102 Wn.2d 219, 232-33, 685 P.2d 1081 (1984)).

The right to be free from discrimination because of creed is a civil right. RCW 49.60.030(1). The Legislature has clearly and unambiguously declared that practices of discrimination against any of its inhabitants because of creed "threatens not only the rights and proper privileges of its inhabitants but menaces the institutions and foundation of a free democratic state." RCW 49.60.010. And it is an unfair practice to discharge any person from employment because of their creed. RCW 49.60.180 (2).

Here, Respondents fired Appellant for practicing her religion. Appellant did not go to work on September 29 because she was observing a Feast of God which is a Sabbath. As argued above, Appellant believes the Bible commands her not to work on any Sabbath but to instead spend it in prayer, worship, and fellowship. When Respondents denied Appellant's request not to work on September 28 and 29, it forced her to choose between obeying God and obeying Respondents. Respondents not only failed to accommodate her religious

practice, but it attempted to force her to do something in direct violation of her religious beliefs.

Here, there was no legitimate reason for Respondent to fire Appellant because she was never disciplined nor did Respondents experience any hardship on September 29. But most egregiously, Respondents told Appellant she was fired for observing her religious festival on September 29 instead of coming to work.

A reasonable jury could only reach one conclusion – that the Respondents terminated Appellant for practicing her religion which violates public policy. Therefore, this Court should reverse the trial court's Order denying Plaintiff's Motion for Summary Judgment for her wrongful termination in violation of public policy claim and remand this case for trial on the merits.

E. <u>Appellant Should Be Awarded Attorney Fees</u>

Pursuant to RAP 18.1 and RCW 49.48.030 Appellant hereby petitions this Court for attorney fees and costs. In bringing an employment discrimination action, a prevailing party acts as a "private attorney general: by enforcing a public policy of substantial importance." *Allison v. Housing Authority,* 118 Wn.2d 79, 86, P.2d 34 (1991). Part of a "comprehensive scheme to ensure payment of wages," the attorney fee statute provides employees both an incentive and a means to pursue their

claims to unpaid wages or salary. *Schilling v. Radio Holdings, Inc.,* 136 Wn.2d 152, 157, 961 P.2d 371 (1998). "One of the primary purposes of remedial statutes like RCW 49.48.030 is to allow employees to pursue claims even though the amount of recovery may be small." *Int'l Ass'n of Fire Fighters Local 46 v. City of Everett,* 146 Wn.2d 29, 50, P.3d 1265 (2002); *see also: Schilling,* 136 Wn.2d 152, 159.

> The Court has discretion as to how much to award in fees. "As nearly as possible, market standards should prevail, for that is the best way of ensuring that competent counsel will be available to all persons with bona fide civil rights claims. This means thatjudges awarding fees must make certain that attorneys arepaid the full value that their efforts would receive on the open market in non-civil rights cases." *Hensley v. Eckerhart,* 461 U.S. 424, 435, 103 S.Ct. 1933 (1983).

Appellant also has the burden of documenting the attorney fees.

> This documentation need not be exhaustive or in minute detail, but must inform the court, in addition to the number of hours worked, of the type of work performed and the category of the attorney who performed the work. *Bowers v. Transamerica Title Ins. Co.,* 100 Wn.2d 581, 675 P.2d193 (1983).

Appellant is also petitioning for fees of paralegals and legal assistants. *Richlin Sec. Service Co. v. Chertoff,* 553 U.S. 571, 580, 128 S. Ct. 2007, 2014 (2008); *Missouri v. Jenkins,* 491 U.S. 274, 109 S. Ct. 2463 (1989). An adjustment should also be taken based on the contingent nature of this case and the quality of the work, which will be up for the Court to

decide. *Pannell v. Food Services of America,* 61 Wn. App. 418, 447, 810 P.2d 952 (1991).

VI. CONCLUSION

For all these reasons, Appellants respectfully prays this Court to reverse and remand the lower courts' order on summary judgment and to award attorney fees and costs to Appellant.

RESPECTFULLLY SUBMITTED this 19th day of November, 2021.

/s/ Favian Valencia

Favian Valencia,
WSBA#43802
Attorney for Appellant
Sunlight Law, PLLC.
306 Holton Ave
Yakima, WA 98902
(509) 388-0231

CERTIFICATE OF SERVICE

The undersigned makes the following declaration certified to be true under penalty of perjury pursuant to RCW 9A.72.085:

On the date given below, I hereby certify that the attached document hereto was served on the following in the manner indicated:

Nicholas Ulrich, WSBA No. 50006 Assistant Attorney General 1116 W. Riverside, Suite 100 Spokane, WA 99201 Phone: (509) 456-6390 Email: Nicholas.Ulrich@atg.wa.gov	[ ] Electronic mail [ ] Facsimile [ ] Legal Messenger [ ] U.S. mail [x] Other: via Court Website

The Court of Appeals of the State of Washington Division III **500 N Cedar St** **Spokane, WA 99201-1905** **Fax (509)456-4288**	[ ] Electronic mail [ ] Facsimile [ ] Legal Messenger [ ] U.S. first class mail [x] Other: Court website

Executed this _19th_ day of November, 2021, at Yakima, Washington.

By: _*/s/ Favian Valencia*_____
Favian Valencia, WSBA No. 43802
306 Holton Avenue
Yakima, WA. 98902
(509) 388-0231

SUNLIGHT LAW, PLLC

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